

		the same to be considered “substantially related.” Both cases involve loans made by Bian and allegations of wrongful foreclosure. Bian’s lending and foreclosure practices were material to the Cashera Lawsuit and are material to the evaluation, prosecution, and settlement of this action. Once it has been established that there is a “substantial relationship” between the Cashera Lawsuit and this action, it is presumed that Diulio and his firm possess confidential information. Contrary to Plaintiffs’ argument, the Court takes the position Bian does not need to identify the specific confidential information that was exchanged during the prior representation. Accordingly, the motion to disqualify Diulio and The Diulio Firm as to their representation of Plaintiffs in this action is GRANTED. <u>MOTION TO SEAL</u> Defendant Wenqiang Bian’s Motion to Seal is GRANTED. Defendant seeks to seal the order issued by the arbitrator, the Hon. Judith Ryan, ret., in JAMS Case No. 5240002186, on Bian’s motion to disqualify attorney Kristopher Diulio from representing the respondents in that proceeding adverse to Bian. (See ROA 46.) The motion is unopposed and Bian has identified an overriding interest in maintaining the confidentiality of the arbitration proceedings. (Cal. Rules of Court, rule 2.550(d).) Accordingly, the motion to seal is GRANTED. The Clerk is ordered to seal the document identified herein and consistent with the Court’s order. The Case Management Conference is CONTINUED to December 3, 2026, at 9:30 a.m. in Department C12. Moving Party Defendant shall give notice of all of the above.
7.	Pantoja vs. Collins 23-01370879	Demurrer to Amended Complaint CONTINUED TO JUNE 12, 2026. See ROA 598

8.	Claytor vs. Honeycomb Insurance Company 25-01520393	1. Demurrer to Complaint 2. Case Management Conference <u>Request for Judicial Notice</u> Defendant Honeycomb Programs, Inc.’s request for judicial notice is DENIED. An insurance policy for Woods Cove Owners Association issued by Accredited Surety and Casualty Company Inc. is not a proper subject of judicial notice. <u>Demurrer to Complaint</u> Defendant Honeycomb Programs, Inc.’s demurrer to Plaintiffs Rex K. Claytor and Bridget Lockwood’s Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) The Complaint fails to sufficiently allege an underlying agreement between Plaintiffs and Defendant to provide insurance to Plaintiffs. Accordingly, each of Plaintiffs’ five causes of action fail to allege facts sufficient to constitute a cause of action. <u>Meet and Confer</u> Defendant has sufficiently complied with Code Civ. Proc. §430.41, subd. (a)(1). Defendant’s counsel declares that on December 23, 2025, the parties met and conferred via telephone and were unable to resolve the issues raised in the demurrer. (See Teitcher Decl. at ¶ 9.) <u>COA 1: Breach of Contract</u> To plead a cause of action for breach of contract, Plaintiffs must allege (1) the existence of a contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. (See <i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) To survive a demurrer, Plaintiffs must at least plead the legal effect of an insurance agreement. (See <i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 199.) Here, Plaintiffs have not alleged the legal effect of the policy, nor have they alleged that Defendant is a party to such an agreement. Accordingly, the demurrer to the First Cause of Action is SUSTAINED. <u>COA 2: Breach of Implied Covenant of Good Faith and Fair Dealing and COA 3: Bad Faith Denial of Insurance Claim</u> Plaintiffs’ Third and Fourth Causes of Action are essentially duplicative of one another. The elements of a cause of action for
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